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Hour of the Hangman

The Aftermath of Afzal's Hanging may be Long and Costly

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Bloodthirstiness, thou art afoot, and not just in Iraq. Shrieking followers of the second largest party in our country, led by no less a person than a former Prime Minister, are out on the streets demanding the immediate hanging of Mohammad Afzal, with no intervention on the part of the President. A recent Supreme Court judgement, annulling the decision of the Andhra Pradesh governor to reduce from ten years to five the prison term passed on a Congress party worker, has added to their zeal.[1] The power, under Article 161 of the Constitution, of a state governor to grant pardon or to suspend, remit or commute sentences is not, according to this judgement, absolute, but subject to judicial review. What applies in the case of a state governor, the Bharatiya Janata Party maintains, should equally apply to similar discretionary powers enjoyed under Article 72 by the President.

Even those who hold an ideological position altogether contrary to the BJP's might be tempted to take a cynical view of the proceedings: where scores of young people are being systematically gunned down in Kashmir without let or hindrance by the security forces, the state-organized ceremonial killing of another person, who happens to bear the name Mohammad Afzal, would not make much of a difference. Cynics are honourable members of society; their wry comments often put to shame unthinking, righteous-minded people in authority. In the present instance, though, there is genuine ground for doubting the relevance of banter. For Afzal's case involves several complex issues all jumbled together: moral, legal, constitutional and, most importantly, political.

The moral or humanitarian issue may, for the present, be kept aside. Thanks to the likes of George W. Bush and Tony Blair, morality has, at this moment,